



SPONSOR: Sen. Hoffner & Rep. Carson  
Sens. Huxtable, Lawson, Wilson; Reps. Bolden, Bush,  
Collins, D. Short, Yearick

DELAWARE STATE SENATE  
153rd GENERAL ASSEMBLY

SENATE BILL NO. 190

AN ACT TO AMEND TITLE 3 OF THE DELAWARE CODE RELATING TO LEASES OF AGRICULTURAL LAND OWNED BY THIS STATE OR A POLITICAL SUBDIVISION OF THIS STATE.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Part II, Title 3 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

Chapter 20. State-Owned Agricultural Land Leases

§ 2001. Definitions.

For purposes of this chapter, "State-owned agricultural land" means land of 10 acres or more that is owned by this State or a political subdivision of this State and that is used or intended to be used for agricultural use, as defined under § 902 of this title.

§ 2002. Notice requirements.

(a) Except as provided in subsection (c) of this section, when this State or a political subdivision of this State seeks bids to lease State-owned agricultural land for either a short-term or long-term lease period, notice of the request for bids must be provided to the Delaware Farm Bureau, or successor of that organization, to be distributed or made available to farmers.

(b) The notice requirement under subsection (a) of this section is in addition to any other notice required for procurement of bids to lease land owned by this State or a political subdivision of this State under State or local law, ordinance, or regulation.

(c) The notice requirement under subsection (a) of this section does not apply to the renewal of an existing lease when the tenant remains the same.

SYNOPSIS

This Act is a Senate Bill version of House Bill No. 117, as amended by House Amendment No. 1 ("House Bill No. 117"), which was reported out of the House Agriculture Committee on May 14, passed by the House on May 22, and reported out of the Senate Agriculture Committee on June 11.

This Act replaces House Bill No. 117 to do all of the following:

(1) Correct the bill title to ensure adequate notice that this Act is intended to apply to land owned by a political subdivision of this State, not just land owned by this State.

(2) Make technical corrections consistent with the Delaware Legislative Drafting Manual.

(3) Clarify that under § 2002(b) of Title 3 the land referenced is intended to be land owned by this State or a subdivision of this State.

Otherwise, this Act is substantively identical to House Bill No. 117 and so, like House Bill No. 117, this Act requires this State and any political subdivision of this State to notify the Farm Bureau when land owned by this State or any political subdivision of this State is listed for bidding for agricultural use. This requirement applies to land that is at least 10 acres in size and is used or intended to be used for agricultural use. The requirement to notify the Farm Bureau is in addition to, and not in lieu of, any other notice required by law.

Author: Senator Hoffner